

11	30-2020-01145279 Ledesma vs. Shrin, LLC	Plaintiff Sofia Ledesma’s (“Plaintiff”) Motion for Terminating Sanctions is DENIED. Sanctions are warranted when there are “[m]isuses of the discovery process.” (CCP § 2023.010.) Sanctions include monetary sanctions, issue sanctions, evidentiary sanctions, terminating sanctions and contempt sanctions. (CCP § 2023.010(a)-(e).) “[T]erminating sanctions are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (<i>R.S. Creative, Inc. v. Creative Cotton, Ltd.</i> (1999) 75 Cal. App. 4th 486, 496.) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (<i>Mileikowsky v. Tenet Healthsystem</i> (2005) 128 Cal. App. 4th 262, 279–80.) Terminating sanctions are warranted when there is evidence that a plaintiff “failed to comply with discovery orders to produce . . . documents on two separate occasions, and that the failure to comply, even if not deliberate, evinced a disregard for the discovery process,” “repeatedly presented false, misleading, or evasive discovery responses,” “presented false or evasive deposition testimony,” and “engaged in spoliation . . . despite probable civil litigation[.]” (<i>Dep’t of Forestry & Fire Prot. v. Howell</i> (2017) 18 Cal. App. 5th 154, 198 [affirming trial court’s imposition of terminating sanctions].) Terminating sanctions are justified when a party has “engaged in egregious and deliberate misconduct that ma[ke] any other sanction inadequate to protect the judicial process and to ensure a fair trial.” (<i>Id.</i>) Here, Shrin has responded to some of Plaintiff’s Request for Production with promises of compliance, but has only produced some of the documents for only a portion of the relevant time period and only for some of the class members. Shrin fails to provide substantial justification for its delay in producing the remaining requested documents.

		The court finds that these facts do not arise to the type of egregious discovery misuse that warrants terminating sanctions. Thus, Plaintiff's Motion for Terminating Sanctions is denied. However, the requested documents are clearly relevant to the claims in this action and Shrin has failed to act diligently in obtaining the requested documents. Plaintiffs' Alternative Motion to Compel Defendants' Further Responses to Request for Production of Documents, Set 3, and Request for Monetary Sanctions is GRANTED IN PART. IT IS ORDERED THAT within fourteen (14) days of this ruling, Defendant Shrin, LLC ("Shrin") shall provide all responsive documents to Plaintiffs' Requests for Production of Documents ("RFP"), Set 3, as follows: (1) RFP Nos. 63-65: Any policies or documents from Paycom concerning its calculation of overtime pay for Shrin employees, or a verified statement that Paycom has refused to produce such documents. (2) RFP Nos. 71-72: Any policies or documents from Paycom concerning reflecting modifications, updates, or changes to wage statements it prepared for Shrin employees, or a verified statement that Paycom has refused to produce such documents. (3) RFP Nos. 78-80: All wage statements, time records, payroll records, punch cards, work period computer cards & printouts, work schedules, pay stubs, and itemized statements for all Class Members during the relevant time period. This supplemental response must comply with the Code of Civil Procedure, including the requirement that "[a]ny documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond." (CCP § 2031.280(a).) This includes the six bankers' boxes of documents that Shrin claims were produced to Plaintiff in a different case. The Alternative Motion to Compel is DENIED IN PART as to RFP Nos. 73-74, based on Shrin's representation that it does not have a piece rate policy for compensating its employees and therefore cannot produce responsive documents as to such
--	--	--

		a policy. To the extent Plaintiff seeks discovery regarding a “task value” policy, Plaintiff must request such discovery. Plaintiff also seeks an award of monetary sanctions against Shrin in the amount of \$12,920.00 for attorney’s fees and \$60.00 for costs pursuant to CCP §§ 2031.310(h) and 2023.030. As Plaintiff’s motion is only granted in part, and as only some of the requests for production are still at issue, the court grants in part Plaintiff’s request for monetary sanctions. IT IS ORDERED THAT monetary sanctions in the amount of \$3,000.00 is payable to Plaintiff by Shrin and its counsel, jointly and severally, within sixty (60) days of this ruling. Plaintiff is ordered to give notice of this ruling.
12	30-2023-01321351 Danforth vs. Placentia-Linda Hospital, Inc.	Off Calendar
13	30-2025-01513896 Vaughn vs. American Woodmark Corporation, a Virginia corporation	Off Calendar